

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)



Present:

Mrs. Justice Ayesha A. Malik
Mr. Justice Shakeel Ahmad

C.P.L.A.4430 OF 2025

(Against the judgment dated 26.06.2025 passed by the Federal Service Tribunal, Islamabad in Appeal No.17(P)CS-2022)

Federation of Pakistan through Secretary,
Finance, Finance Division, Islamabad

...Petitioner

Versus

Farid Ullah and others

...Respondents

For the Petitioner : Mr. Munawar Iqbal Duggal,
Additional Attorney-General for
Pakistan along with Khalid Zia S.O(L)

For Respondents : N.R.

Date of Hearing : 12.02.2026

ORDER

Ayesha A. Malik, J.- The Petitioner, being the Federation of Pakistan through Secretary, Finance Division, Pakistan Secretariate, Islamabad has impugned the judgment of the Service Tribunal dated 26.06.2025. However, we note that the Petition filed before us is barred by 20 days for which an application for condonation of delay has been filed.

2. We have examined the application for condonation of delay. In terms of the said application, the case was under process with the Deputy Secretary (Litigation-II), Ministry of Finance in order to seek approval from the CPLA Committee. On obtaining this approval, it transpires that the CPLA Committee could not be convened due to insufficient number of cases before it for deliberation. Apparently when the number of cases increased the matter was approved by the CPLA Committee after which the draft was sent to the Law & Justice Division for vetting. This Division considered the draft, suggested some changes which ultimately was prepared, approved and ready for filing. At this point as per the contents of the application for condonation of delay, the period of limitation had expired. The application further explains that the delay

was neither willful nor intentional given that there was certain administrative challenges and bottlenecks such as the absence of full-time officer in the relevant section which had to approve the draft in the relevant section under the Deputy Secretary. Furthermore, there was the transfer of the relevant Deputy Secretary as well which as was presented before us was not intentional and caused considerable delay.

3. We have heard the Additional Attorney General for Pakistan, however, find that the delay as explained does not merit as sufficient cause for the delay. The explanation offered and that tendered in the application is essentially that the Petition could not be filed in time due to internal procedural requirements and administrative challenges. Both explanations are totally unsatisfactory as internal procedural requirements or administrative inconveniences cannot override the legal obligation to file the Petition within the given time. The Petitioner is fully aware of the prescribed timeframe within which the Petition was required to be filed yet it gave preference to bureaucratic process without any effort to speed up the process. Such conduct amounts to a conscious disregard of the requirements of law and also reflects poor enforcement within the system of governance. Poor enforcement, in this context, refers to the failure of the State to ensure that timelines as set out in the law are treated as binding. A system that cannot ensure adherence to its own legal obligations reflects a weakness in internal accountability. Where delay is explained by reference to administrative routine rather than unavoidable circumstance, it indicates that compliance is dependent on convenience rather than discipline. This kind of delay is inexcusable particularly when no effort has been made to reform or improve the procedure that causes so much delay. We are of the opinion that the State is required to organize itself in such a way that it functions in a timely manner and meets legal timelines and it cannot seek indulgence for its own inefficiencies whether totally or its own making. This requirement is fundamental to rule-based governance. The State enforces the law against citizens and expects compliance within prescribed timelines. It must therefore hold itself to the same standard. If the State is permitted to disregard statutory timeframes on account of its own internal inefficiencies, it creates an

imbalance in the administration of justice and undermines the constitutional guarantee of equality before the law. When the State fails to comply with these timelines and seeks indulgence for administrative delay, it transfers the consequences of its disorganization onto the Court and the opposing party, who is often in a weaker position than the State. Good governance requires that institutions function through clear responsibility, internal discipline, and adherence to law. If compliance depends on convenience rather than structured systems, delay becomes routine and accountability diminishes. Courts cannot condone such delay without weakening the expectation that the State must maintain efficient systems capable of meeting its legal obligations. Enforcement of timelines and internal procedures therefore strengthens institutional discipline and reinforces public confidence that the law applies equally to all in terms of Article 25 of the Constitution.¹

4. In this context, the prescribed timeline as per the Supreme Court Rules is 60 days.² When a statutory timeframe is prescribed, it is intended to ensure that parties act with diligence and that disputes do not remain indefinitely open. If internal administrative movement of files, committee scheduling constraints, or staffing shortages are accepted as sufficient cause, the statutory framework would be rendered flexible at the convenience of the litigant. This would violate the very purpose of limitation, which is to create predictability in the administration of justice. The Supreme Court Rules prescribe a period of limitation which is not just a technical requirement but has substantive importance. The Petitioner was required to adhere to the timelines provided as this is the requirement for any litigant before this Court and the Petitioner is well aware of the fact that the expiry of the timeframe within which the Petition was to be filed will extinguish the remedy unless sufficient cause is shown. We find that the explanation so provided in the application for condonation of delay is not sufficient cause rather suggests a very casual approach to the timeframe and prescribed limitation which the Petitioner is required to adhere to. The Petitioner is just like any other litigant who is required to follow the law and to respect it with institutional

¹ The Constitution of the Islamic Republic of Pakistan, 1973 (**Constitution**).

² Order XXV read with Order XIV, Rule 1, Supreme Court Rules, 2025 (**Supreme Court Rules**).

seriousness. It is fully aware that failure to act within prescribed timelines extinguishes remedies unless sufficient cause is shown. Repeated reliance on administrative inconvenience as justification suggests a systemic weakness in enforcement and internal accountability. Such a pattern normalizes delay as an acceptable practice.

5. In view of the foregoing, the explanation offered does not constitute sufficient cause within the meaning of the law. Consequently, CMA No.8318 of 2025 for condonation of delay is dismissed with the result that the Civil Petition is dismissed being barred by time.

JUDGE

Islamabad, the
12th February, 2026
‘Approved for Reporting’
*Azmat/Nurayn Qasim**

JUDGE